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Via EDIS

August 28, 2026

The Honorable Lisa R. Barton
Secretary to the Commission
United States International Trade Commission
500 E St., SW, Room 112
Washington, DC 20436

**Re: *Certain Semiconductor Devices, Products Containing Same, and Components Thereof,*
 Inv. No. 337-TA-1500**

Dear Secretary Barton:

Attached for filing on behalf of Respondents Tower Semiconductor Ltd.; Tower Partners Semiconductor, Ltd.; Tower Semiconductor Italy S.r.l.; Tower US Holdings, Inc.; Tower Semiconductor San Antonio, Inc.; Tower Semiconductor NPB Holdings, Inc.; Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC in the above-referenced investigation, please find the Agreement to be Bound by the Protective Order (Order No. 1, April 30, 2026) and First Amendment to the Protective Order (Order No. 7, June 29, 2026) of expert Suman Datta.

Please contact me if you have any questions.

Respectfully Submitted,

/s/ Stephen R. Smith
Stephen R. Smith

Suman Datta
sdatta68@gatech.edu

Via EDIS

August 18, 2026

The Honorable Lisa R. Barton
Secretary to the Commission
United States International Trade Commission
500 E St. SW, Room 112
Washington, DC 20436

Re: Inv. No. 337-TA-1500; *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*

Dear Secretary Barton:

I was retained as an expert by Respondents Tower Semiconductor Ltd., Tower Partners Semiconductor Co., Ltd., Tower Semiconductor Italy S.r.l., Tower US Holdings, Inc., Tower Semiconductor San Antonio, Inc., Tower Semiconductor NPB Holdings, Inc., Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC ("Tower" or "Respondents") in the above-referenced investigation. By this letter, I acknowledge that I have read the Protective Order (Order No. 1) issued by Administrative Law Judge Cameron Elliot in this investigation on April 30, 2026 (the "Protective Order") and the First Amendment to the Protective Order (Order No. 7) issued by Chief Administrative Law Judge Clark S. Cheney on June 29, 2026 (the "First Amendment"). In accordance with the Protective Order and First Amendment, I hereby agree:

1. To be bound by the terms of the Protective Order and First Amendment;
2. Not to reveal confidential business information to anyone other than persons designated in paragraphs 3 and 18; and
3. To utilize such confidential business information solely for purposes of this investigation.

Pursuant to paragraph 4 of the Protective Order, I, the undersigned, on behalf of Respondents, acknowledge that information submitted for purposes of this Investigation may be disclosed to and used:

- i) by the Commission, its employees and Offices, and contract personnel (a) for developing or maintaining the records of this or a related proceeding, or (b) in internal investigations, audits, reviews, and evaluations relating to the programs, personnel, and operations of the Commission including under 5 U.S.C. Appendix 3; or
- ii) by U.S. government employees and contract personnel, solely for cybersecurity purposes. I understand that all contract personnel will sign appropriate nondisclosure agreements.

Respectfully submitted,

Suman Datta

Suman Datta

EXHIBIT A

**ACKNOWLEDGMENT AND AGREEMENT TO BE BOUND BY THE FIRST
PROTECTIVE ORDER AMENDMENT**

I, Suman Datta [print or type full name], state: My
business address is 5096 Dinant Dr, Johns Creek, GA 30022

My present employers are Georgia Tech;

My present occupations or job descriptions are Professor, ECE;

I have read in its entirety the First Protective Order Amendment Regarding the Production and Treatment of Confidential Process Definitions (“First Protective Order Amendment”) entered in this litigation, and I understand and agree to abide by its terms. I agree to keep confidential all HIGHLY CONFIDENTIAL PROCESS DEFINITION — OUTSIDE ATTORNEYS’ EYES ONLY INFORMATION provided to me related to *Certain Semiconductor Devices, Products Containing Same, and Components Thereof*, Investigation No. 337-TA-1500, in accordance with the restrictions in the First Protective Order Amendment, and to be subject to the authority of the United States International Trade Commission and/or any appropriate state or federal court in the event of any violation or dispute related to this First Protective Order Amendment.

I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on 08/17/2026.

SUMAN DATTA
[Printed Name]
Suman Datta
[Signature]

CERTIFICATE OF SERVICE

I hereby certify that on August 28, 2026, copies of the foregoing were filed with and served upon the following as indicated:

The Honorable Lisa Barton
Secretary to the Commission
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW, Room 112
Washington, DC 20436

☐ Via First Class Mail
☒ Via EDIS
☐ Via Box
☐ Via Electronic Mail

The Honorable Clark S. Cheney
Chief Administrative Law Judge
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW, Room 317
Washington, DC 20436

☐ Via First Class Mail
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☒ Via Box
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Email: Cheney1500@usitc.gov

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/s/ Nicholas Fox
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COOLEY LLP